

Ross on Crime

M

Memory

Last Review: 20/09/2023

---

# Memory

|                                                  |                           |
|--------------------------------------------------|---------------------------|
| Refreshing memory                                | <a href="#">[13.2100]</a> |
| Legislation                                      | <a href="#">[13.2105]</a> |
| Recovered or repressed memory – opinion evidence | <a href="#">[13.2110]</a> |
| Recovered memory                                 | <a href="#">[13.2115]</a> |
| Accused's loss of memory                         | <a href="#">[13.2120]</a> |
| Articles                                         | <a href="#">[13.2125]</a> |

## **[13.2100]** Refreshing memory

The memory of a witness may be refreshed either in or out of court.

In *R v Da Silva* [1990] 1 WLR 31; [1990] 1 All ER 29; (1989) 90 Cr App R 233 (CCA) Stuart-Smith LJ giving the judgment of the court said (at 36; 33; 238):

In our judgment, therefore, it should be open to the judge, in the exercise of his discretion and in the interests of justice, to permit a witness who has begun to give evidence to refresh his memory from a statement made near to the time of events in question, even though it does not come within the definition of contemporaneous, provided he is satisfied: (1) that the witness indicates that he cannot now recall the details of events because of the lapse of time since they took place; (2) that he made a statement much nearer the time of the events and that the contents of the statement represented his recollection at the time he made it; (3)

that he had not read the statement before coming into the witness-box; (4) that he wished to have an opportunity to read the statement before he continued to give evidence.

In *R v Pachonic* [1973] 2 NSWLR 86 Lee J ruled (at 87–88):

There is authority which I think should be followed that it is proper in many circumstances for a prosecution witness to refresh his memory, out of court, from a document made contemporaneously with or soon after the events about which he is giving evidence: *R v Richardson* [1971] 2 QB 484.

*R v Richardson* [1971] 2 QB 484; [1971] 2 All ER 773; (1971) 55 Cr App R 244 at 489, 777, 250 (CA), approved *Lau Pak Ngam v The Queen* [1966] Crim LR 443 at 444 (HK), in which it was said:

Testimony in the witness box becomes more a test of memory than of truthfulness if witnesses are deprived of the opportunity of checking their recollection beforehand by reference to statements or notes made at a crime closer to the events in question ...

Refusal of access to statements would tend to create difficulties for honest witnesses but be likely to do little to hamper dishonest witnesses.

The Court of Appeal went on to say (at 490; 777; 251):

But there can be no general rule which incidentally would be unenforceable, unlike the rule as to what can be done in the witness box that witnesses may not before trial see the statements they made at some period reasonably close to the time of the event which is the subject of the trial. Indeed one can imagine many cases, particularly those of a complex nature, where such a rule would militate very greatly against the interests of justice.

In *R v Roughley* (1995) 5 Tas R 8; 78 A Crim R 160 (CCA) Zeeman J said (at 30; 176):

A witness may use a variety of methods to “refresh” his or her memory many of which methods may not truly result in the memory being refreshed and some of which may result in there being engendered in the mind of the witness a pseudo recollection of events. Before coming to court a witness may refresh his or her memory in any way that the witness considers to be appropriate: *King v Bryant (No 2)* [1956] QSR 570 at 583-584. The means adopted by a witness with a view to refreshing his or her memory go to weight and not to admissibility.

In *Hetherington v Brooks* [1963] SASR 321 Travers J said (at 325):

It is quite often a convenient method of taking evidence, in the absence of objection, to allow a witness to read his notes, and in many cases, such, for instance, as a doctor giving the medical history which was given to him months before, or a police officer giving a series of measurements he had taken at the scene of the accident, considerations of accuracy make it desirable that he do so, but where the witness is dealing with controversial facts or where objection is made, it seems to me to be highly desirable, unless the witness is prepared to pledge his oath that he is unable to give the real substance of the story without refreshing his memory from the document, that he should proceed to tell his story without the document until he needs to refresh his memory on the aspect of the matter. He should then tell the Court that he has reached such a stage, and that he wishes to refresh the memory, and in that event, recourse may be had to the document to refresh his memory on that particular subject. Having refreshed his memory, by looking at it, he then should tell the Court what he has to say. A witness's swearing to the need to refresh the memory is often a very important part of the material upon which the Court may judge his veracity.

### See also

[\*De Bono v Neilsen\* \(1996\) 88 A Crim R 46 at 53 \(Vic Coldrey J\);](#)

[\*NBM v The Queen\* \[2021\] SASCA 105.](#)

### [13.2105] Legislation

Legislation refers to refreshing memory.

#### Australia

Under *Uniform Evidence Acts* s 32 a witness can revive a memory in court by using a document provided the court gives leave. Under *Uniform Evidence Acts* s 34 a witness may be able to refresh memory out of court.

#### New Zealand

In New Zealand the rules on refreshing memory are quite strict.

NZ: *Evidence Act 2006* s 90.

#### England

In England a witness can refresh memory from a document or sound recording.

Eng: *Criminal Justice Act 2003* s 139.

**[13.2110]** Recovered or repressed memory – opinion evidence

In *R v Bartlett* [1996] 2 VR 687 (CA) Winneke P with whom the others agreed said (at 695):

It seems to me, however, that questions of whether there is such a phenomenon as a “suppressed memory” and, if so, whether it is likely to provide accurate recall; or whether recall of events suppressed for many years are likely to be affected or displaced by other similar events, are questions which must surely be outside the ken of the lay person. Quite clearly, as his Honour noted, they have been the subject of much research which has produced a division of expert opinion. The learned judge seemed to think that because there was such a division of opinion it was a matter which could be used to exclude the evidence. In my view, that cannot be right. The fact that experts speaking in a field which is truly an “expert's field” do not speak with one voice cannot, in my view, assist in determining whether such opinions are admissible in evidence.

**See also**

*R v Eishauer* (unreported, NSW CCA, 19 September 1997).

**Child** (Accommodation syndrome) at [3.1835]; and **EMDR** at [5.900].

**[13.2115]** Recovered memory

In *R v Bartlett* [1996] 2 VR 687 (CA) Winneke P, with whom the others agreed, said (at 695):

The question of “suppressed memory” arose in the recent case of *R v Thorne* (unreported, Court of Criminal Appeal, 19 June 1995). In that case the accused had been charged with a number of counts of sexually abusing the complainant many years before complaint was made. The complainant denied that she was recalling “forgotten” events, but there was evidence to show that she had only complained years after the events occurred and had done so after she had received “therapeutic counselling” ... Ashley J pointed out:

It should be added, for sake of completeness that there is controversy whether early childhood memories of sexual abuse can be recovered by therapists. Believers refer to “repressed memory syndrome”; non believers to “false memory syndrome”. There is a great deal of literature on the subject. It does not speak with one voice. Different responses of courts to aspects of the problem are revealed by *R v Norman* (1993) 87 CCC (3d) 153 at 168-169 (Ontario Court of Appeal) and *R v The Queen* (1994) 11 CRNZ 402 (Tipping J High Court of New Zealand).

Where recovered memory is an issue the jury should be directed on the subject: *Christophers v The Queen* (2000) 23 WAR 106; 116 A Crim R 280 (CCA).

Recovered memory will be subject to a *Longman* (1989) 168 CLR 79; 43 A Crim R 463 warning.

**[13.2120]** Accused's loss of memory

A judge should give a proper direction where an accused says he has no memory of the events in question.

In *Broadhurst v The Queen* [1964] AC 441; [1964] 1 All ER 111 (PC) Lord Devlin, giving the advice of the Board, said (at 459; 121):

No astute man, if he were considering what sort of lies to tell, would think that a story about loss of memory was the most convincing that the circumstances permitted. This is a case in which it is just as easy to say that the accused's defence was impeded by loss of memory as that it was assisted by it. In *Russell v HM Advocate* (1946 SC(J) 37) the Lord Justice-Clerk said (at p 48):

Loss of memory in a person otherwise normal and sane plays its full part, if it is sufficiently proved, in increasing the onus on the Crown, and in raising doubts to which it may be the duty of the jury to give effect in a verdict of acquittal after investigation of the whole case.

In referring to this dictum in *R v Podola* [1960] 1 QB 325 Lord Parker CJ said (at 356) that it did not mean that strictly the onus was any greater, but that:

A judge should point out to a jury that they must take into consideration carefully the fact that the accused cannot remember the events.

Just as a faked loss of memory may make it easier for a jury to draw the inference of guilt, so a genuine loss of memory may make it more difficult, for a jury must then reflect that by the force of circumstances they have heard only one side of the case. Their lordships consider that the learned Chief Justice should have pointed this out to the jury and that he did not hold the balance even in this respect.

In *R v Arnold* (2003) 40 MVR 488 (SA CCA) Mullighan J, with whom the others agreed, said (at 499 [68]):

Clearly there are cases where the accused has suffered a genuine loss of memory and the jury must be directed to take that matter into consideration carefully, for example *Broadhurst v The Queen* [1964] AC 441; [1964] 1 All ER 111; [1964] WLR 38; *R v Richards* 64 SASR 42; (1994) 77 A Crim R 1 and *R v Singh* (2003) 86 SASR 473 at [135]-[137]. However, that is not the present case.

### [13.2125] Articles

S Armstrong, “Memory Syndrome under Scrutiny” (1995) Law Soc Bulletin (SA) (No 1) 20;

C Thompson, “Memory Repression in Child Sex Abuse Cases” (1994) 68 Law Inst J 1162;

N Hampton, “Recovered Memory Syndrome v False Memory Syndrome” [1995] NZLJ 154;

I Freckelton, “Repressed Memory Syndrome: Counter Intuitive or Counter Productive” (1996) 20 Crim LJ 7;

KR McConley, “The Subconscious on the Stand: Comments on the Reporting of Recovered Memories” (1996) 69 Reform 19;

R Guilliat, *Talk of the Devil: Repressed Memory and the Ritual Abuse Witch-hunt* (1996 Text Publishing);

M Redmayne, “A Corroboration Approach to Recovered Memories of Sexual Abuse: A Note of Caution” (2000) 116 LQR 147.